

26NWCV00189 26NWCV00189

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#14

VARGAS v. DAFFIN, ET AL.

CASE NO.: 26NWCV00189

HEARING: Thursday, August 13, 2026, at 9:30 AM

Defendant MIDLAND MORTGAGE's Demurrer is SUSTAINED without leave to amend.

Moving Party to give notice.

Defendant's Request for Judicial Notice as to Exhibits 1-12 is GRANTED. (Cal. Evid. Code § 452(h).)

Background

On January 15, 2026, Plaintiff MIGUEL JUAN VARGAS ("Plaintiff") filed this real property action against Defendants BARRETT DAFFIN FRAPPIER TREDDER & WEISS; NEIGHBOR HOMES, LLC; MIDLAND MORTGAGE; and DOES 1 to 25, inclusive.

Plaintiff's Complaint alleges the following causes of action:

1.

Cancellation of Trustee Sale;

2.

Cancellation of Trustee's Deed Upon Sale; and

3.

Quiet Title

On March 30, 2026, Defendant Midland Mortgage, a division of MidFirst Bank (erroneously named as "Midland Mortgage") filed the instant Demurrer.

Cancellation of Trustee Sale and Deed Causes of Action

"The purchaser at a foreclosure sale takes title by a trustee's deed. If the trustee's deed recites that all statutory notice requirements and procedures required by law for the conduct of the foreclosure have been satisfied, a rebuttable presumption arises that the sale has been conducted regularly and properly; this presumption is conclusive as to a bona fide purchaser. [Citation.]" (Moeller v. Lien (1994) 25 Cal.App.4th 822, 830, citing Homestead Savings v. Darmiento (1991) 230 Cal.App.3d 424, 431.) A bona fide purchaser who acquires an interest in real property without notice of another's right in the property takes the property free of those unknown rights. (Hotchstein v. Romero (1990) 219 Cal.App.3d 447, 451.) "A properly conducted nonjudicial foreclosure sale constitutes a final adjudication of the rights of the borrower and lender." (Ibid., citing Smith v. Allen (1968) 68 Cal.2d 93, 96.)

Plaintiff alleges that Defendants "failed to comply with statutory rules for a valid foreclosure in the State of California." (Complaint ¶ 27.) The Court takes Judicial Notice of Defendant's Exhibit 10, the Trustee Deed Upon Sale. The Trustee Deed Upon Sale states that, "Trustee has complied with all requirements of law regarding the mailing of copies of notices or the publication of a copy of the Notice of Default or the personal delivery of the copy of the Notice of Default or the posting of copies of the notice of sale or the publication of a copy thereof." (Ex. 10.) Therefore, there is a rebuttable presumption that the foreclosure sale was conducted properly. (Cal. Civ. Code § 2924(c).)

To rebut the presumption, Plaintiff alleges Defendants

violated Cal. Civ. Code §§ 2923.5 and 2923.6. (Complaint ¶¶ 28, 32.) However, Cal. Civ. Code §§ 2923.5 and 2923.6 only apply to a first lien mortgage or deed of trust secured by owner-occupied residential real property containing no more than four dwelling units. (Cal. Civ. Code § 2924.15(a).) “Owner-occupied” means that the property is the principal residence of the borrower and is security made for personal, family, or household purposes. (Cal. Civ. Code § 2924.15(b).)

Plaintiff fails to allege that the Subject Property was “owner-occupied.” Indeed, Plaintiff does not allege that the property was his principal residence or that the loan was made for personal, family, or household purposes. Thus, Cal. Civ. Code §§ 2923.5 and 2923.6 are inapplicable. Plaintiff fails to rebut the presumption that the foreclosure sale was properly conducted.

Defendant’s Demurrer is SUSTAINED against Plaintiff’s First and Second Causes of Action.

Quiet Title

Plaintiff alleges that Defendants “did not have legal authority to foreclose on the subject property.” (Complaint ¶ 41.) The Court takes Judicial Notice of Defendant’s Exhibit 5, Substitution of Trustee. Exhibit 5 demonstrates that BARRETT FAFFIN FRAPPIER TREDER & WEIS, LLP (“Barrett”) was substituted as Trustee under the Deed of Trust. The recorded instrument is conclusive evidence of Barrett’s authority to foreclose. (Cal. Civ. Code § 2934a(d)(4).)

Further, in a wrongful foreclosure quiet title action seeking to set aside a trustee sale, a plaintiff must sufficiently allege that he/she paid, or offered to pay, all amounts due under the mortgage loan as a necessary allegation to sufficiently challenge a foreclosure by way of an action in equity. “A valid and viable tender of payment of the indebtedness owing is essential to an action to cancel a voidable sale under a deed of trust.” (See *Karlsen v. American Sav. & Loan Assn.* (1971) 15 Cal. App. 3d 112, 117; See also *Arnolds Management Corp. v. Eischen* (1984) 158 Cal. App. 3d 575, 578 [court said “[i]t is settled that an action to set aside a trustee’s sale for irregularities in sale notice or procedure should be accompanied by an offer to pay the full amount of the debt for which the property was security”]; and *Abdallah v. United Savings Bank* (1998) 43

Cal. App. 4th 1101, 1109 [court said debtor is required to allege tender of the amount of the indebtedness in order to maintain any cause of action for irregularity in the sale procedure].) “A cause of action ‘implicitly integrated’ with the irregular sale fails unless the trustor can allege and establish a valid tender.” (See *Arnolds Management Corp. v. Eischen* (1984) 158 Cal. App. 3d 575, 579.)

Here, Plaintiff merely alleges he was “willing and able to tender any alleged delinquent amount.” (Complaint ¶ 42.) Plaintiff fails to allege that he paid or offered to pay all amounts due on his debt. Thus, Plaintiff’s Quiet Title claim fails.

Defendant’s Demurrer is SUSTAINED against Plaintiff’s Third Cause of Action for Quiet Title.

Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy*, (1976) 18 Cal.3d 335, 348.) The burden is on the Plaintiff to show the Court that a pleading can be amended successfully. (*Lewis v. Youtube, LLC* (2015) 244 Cal.App.4th 118, 226.)

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Plaintiff fails to argue he can successfully amend his Complaint. The Court does not think Plaintiff can successfully amend the Complaint. Leave to amend is DENIED.